

Court No. - 3

Case :- WRIT - C No. - 18882 of 2016

Petitioner :- Smt. Geeta Maurya

Respondent :- Poorvanchal Vidyut Vitran Khand-2 And 3 Ors.

Counsel for Petitioner :- Awdhesh Narayan Srivastav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Raghvendra Kumar,J.

It is contended that without supplying a provisional assessment bill and an opportunity to object to it and without fixing a date of hearing, the final assessment has illegally been made and the said amount is being recovered from the petitioner.

Shri Mahboob Ahmad, who has accepted notices on behalf of respondent nos. 1 and 2, prays for and is allowed three days' time to seek instruction in the matter.

Put up as fresh on 4th May, 2016.

Order Date :- 27.4.2016

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Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Heard Sri A.N. Srivastava, learned counsel for the petitioner and Sri Mahmood Ahmad, learned counsel for respondent nos. 1 and 2.

On 27.4.2016, Sri Mahmood Alam, learned counsel for the respondent nos. 1 and 2 was granted time to seek instructions in the matter. He has produced before us the copy of the instructions which shows that provisional assessment notice dated 6.11.2013 was sent to the petitioner by ordinary post. It is contended on behalf of the petitioner that since she did not receive the copy of the provisional assessment notice, as such she could not submit her reply and in absence whereof the respondent treated it to be final and issued recovery certificate.

Sri A.N. Srivastava, learned counsel appearing for the petitioner has invited our attention to the contents of the notice dated 6.11.2013 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.4,19,379/-/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 6.11.2013 and the recovery citation dated 23.7.2015 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 4.5.2016
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